Brazoria County District Court

Cause No. 2024-CV-0036

Sandra Dawson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Sandra Dawson

Date:	August 26, 2024
Location:	Offices of Sullivan & Palmer LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Deanna Cox, Sullivan & Palmer LLP

Q: Please state your full name for the record.

A: I'd rather just go by the placeholder for today, if that works. [Plaintiff name]

Q: That's fine. Have you ever given a deposition before?

A: No, this is my first time.

Q: Let's talk about the accident. Where were you driving when it happened?

A: I was on the main road in Pasadena, Texas, heading toward the shopping center. I was in the right lane.

Q: What were you doing right before the collision?

A: Traffic had slowed, so I was looking for a gap to move into the left lane. I checked my mirror, signaled, and started to merge.

Q: Did you see the other vehicle before you moved over?

A: Not that I remember. I glanced at my mirror and didn't see anything beside me. Then I heard a loud scrape and felt my car get pushed toward the curb.

Q: Which part of your vehicle made contact with the other car?

A: The passenger side of my car. Their driver's side mirror and front fender grazed my door panel.

Q: After the collision, what did you do?

A: I pulled onto the shoulder and turned on my hazards. The other driver got out and we exchanged information. A police officer came and took a report.

Q: Did you feel any pain at the scene?

A: My neck and right shoulder were sore, but I thought it was just from the jolt. I didn't think it was serious at first.

Q: When did the shoulder pain become more significant?

A: By the next morning I couldn't lift my arm above my shoulder without sharp pain. I could barely get a shirt on.

Q: Did you seek medical treatment?

A: Yes, I went to urgent care that same week, and then my regular doctor referred me to an orthopedic specialist.

Q: What treatment have you received for the shoulder?

A: I've done physical therapy about three times a week, and I was given an injection. The doctor has also talked about imaging and possibly surgery if things don't improve.

Q: How has the injury affected your daily life?

A: I had to stop lifting anything heavy at work, and I've needed help with grocery shopping. Sleeping is hard because I can't lie on that side. I also had to stop my weekend recreational basketball.

Q: Have you missed any work because of the injury?

A: Yes, I missed several shifts during the first few weeks of treatment, and I've been on modified duty since then.

Q: Do you currently have any limitations you didn't have before the accident?

A: Yes. Reaching overhead, carrying my grandchildren, and driving for long stretches are all harder now than they were before.